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File No.: EXP202409705

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On July 5, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against PUBLICACIONES Y EDICIONES BARACA 208, S.L. (hereinafter, the claimed party), through the Agreement that is transcribed:

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File No.: EXP202409705

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 03/07/2024, the Spanish Agency for Data Protection became aware of the news published by PUBLICACIONES Y EDICIONES BARACA 208, S.L. with CIF B85372167 (hereinafter, PUBLICACIONES Y EDICIONES BARACA 208) in the digital version of its newspaper (...) referring to (...), with the following text:

(...)

(...)

(...)

(...)

(...)

(...)

(...)

In the news, dated ***DATE.1, the following personal data appears:

- (...) on the dates (...) (...). The following personal data is legible:

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o

Name and surname: A.A.A.

o

ID: ***NIF.1

o

Address: ***ADDRESS.1

SECOND: On 04/07/2024, the news subject to this sanctioning procedure remained accessible along with (...).

THIRD: According to the report collected from the AXESOR tool, the entity PUBLICACIONES Y EDICIONES BARACA 208, S.L. belongs to the economic group EDICIONES Y PUBLICACIONES TROY S.L. It is a microenterprise established in 2008, and the global parent company's sales volume in 2022 is 253,211 euros.

LEGAL GROUNDS

I

Competence and procedure

According to the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish

Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation breached

Article 4.1 of the GDPR defines personal data as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person." In turn, paragraph 2 of the same provision defines data processing as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure, or destruction;"

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Section 7 defines the data controller or responsible party as "the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for their appointment may be established by the law of the Union or of the Member States."

Finally, section 15 defines "health data" as all "personal data related to the physical or mental health of a natural person, including the provision of health care services, which reveal information about their health status."

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since PUBLICACIONES Y EDICIONES BARACA 208 has published a news article in the digital version of its newspaper (...) that contains, among other things, the following personal data of A.A.A.: name and surname, ID number or address. However, not only identifying data has been made public, but also health data of (...).

Finally, it should be noted that PUBLICACIONES Y EDICIONES BARACA 208 carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

III

Minimization of Personal Data

Individuals have the power of disposition over their personal data and its dissemination, and undoubtedly, the person whose personal data is disseminated in violation of the legal order deserves protection.

Thus, the Constitutional Court ruling STC 292/2000, of November 30, states that "the content of the fundamental right to data protection consists of a power of disposition and control over personal data that empowers the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which data this third party may collect, and that also allows the individual to know who holds that personal data and for what purpose, being able to oppose that possession or use. These powers of disposition and control over personal data, which are part of the content of the fundamental right to data protection, are legally specified in the ability to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses by a third party, whether the State or a private individual. And this right to consent to the knowledge and processing, whether computerized or not, of personal data requires as indispensable complements, on the one hand, the ability to know at all times who holds that personal

data and what use they are subjecting it to, and, on the other hand, the power to oppose that possession and uses.”

In this regard, and regardless of what the legal basis legitimizing the processing may be, every data controller must respect the principles of

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treatment collected in Article 5 of the GDPR. We highlight Article 5.1(c) of the GDPR which establishes that:

“1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);”

The principles relating to processing are, on one hand, the starting point and the closing clause of the legal framework for data protection, constituting true guiding rules of the system with a strong expansive force; on the other hand, having a high level of specificity, they are mandatory norms that can be infringed.

However, the fundamental right to the protection of personal data is not absolute, as it may yield to the prevalence of other rights and freedoms that are also constitutionally recognized and protected, such as, for example, the fundamental right to freedom of expression, being weighed on a case-by-case basis.

In this regard, the Article 29 Working Party in its Opinion 06/2014 on the concept of legitimate interest of the data controller under Article 7 of Directive 95/46/EC, when examining the legal basis of legitimate interest under Article 7.1(f) of Directive 95/46/EC, fully transferable to the current Article 6.1(f) of the GDPR, includes the right to freedom of expression or information as one of the scenarios in which the issue of legitimate interest may arise, asserting that “without prejudice to whether the interests of the data controller will ultimately prevail over the interests and rights of the data subjects when the balancing test is carried out.”

That said, the fundamental right to freedom of information is also not absolute. We can observe very clear limits established by the courts in the civil sphere, in relation to the Right to Honor, Personal and Family Privacy, and the Right to One's Own Image.

Thus, we will cite the Supreme Court ruling 50/2017, First Civil Chamber, of January 27, 2017 (appeal 2139/2015) which states:

“In this sense, it is reiterated jurisprudence (see among the most recent, and as a doctrinal summary, ruling 605/2015, of November 3) that the abstract prevalence of the freedoms of expression and information ‘can only be reversed in the specific case by considering the relative weight of honor and privacy according to the specific circumstances at hand, provided that the information and opinions disclosed refer to matters of general interest or public relevance (either by the persons or by the subject matter), that the communication disregards the unnecessary use or employment of unequivocally offensive or degrading expressions and, in the case of freedom of information, as long as they are truthful, specifying in any case that in the area of protection of the right to privacy, the criterion for determining the...

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The legitimacy or illegitimacy of the intrusions is not based on truthfulness but on the public relevance of the disclosed fact, that is, that its communication to the public, even if true, is necessary in light of the public interest in the matter being reported” (the emphasis is ours).

It is not about giving precedence to one fundamental right over another, having to choose which one

carries more weight in a specific case. Rather, it is about finding a balance between both to achieve the purpose of the first without undermining the second. The reconciliation of both rights is nothing new, as the European legislator mandates such reconciliation in Article 85 of the GDPR.

As we have seen earlier, the fundamental right to freedom of expression is not unlimited, as the jurisprudential interpretation when confronting it with other rights and freedoms does not allow for its recognition in all cases and to the fullest extent, but rather, it may be limited by other fundamental rights that must also be respected. Thus, its limitation is observed when the personal data provided is unnecessary to achieve the purpose pursued with the publication of the information.

At this point, it is pertinent to refer to the jurisprudence that analyzes the relationship between freedom of information, on one hand, and the rights of those affected by informative content.

Thus, the European Court of Human Rights (ECHR), in its judgment of June 19, 2012, issued in case 1593/2006, states the following:

“Although the press must not overstep certain limits, particularly regarding the reputation and rights of others or the proper administration of justice, its duty is, nonetheless, to impart, in a manner consistent with its obligations and responsibilities, information and ideas on all matters of public interest (paragraph 48)

(...) the publication of photographs and articles whose sole purpose is to satisfy the curiosity of a particular reader regarding the details of the private life of a public figure cannot be considered to contribute to any debate of general interest to society, even though the person is known to the public. Under such conditions, freedom of expression requires a stricter interpretation (...). (paragraph 50).

(...) When verifying whether the authorities have achieved a fair balance between two protected values guaranteed by the Convention that may conflict with each other in such cases - the freedom of expression protected by Article 10 and the right to respect for private life enshrined in Article 8 - the Court of Justice must balance the public interest in the publication of the information and the need to protect private life (see *Hachette Filipacchi Associés v. France*, no. 71111/01, § 43, ECHR 2007-VII). (Paragraph 51)

On the other hand, the aforementioned judgment of November 30, 2000, issued by the Constitutional Court in case 292/2000, reasons as follows:

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"The fundamental right to data protection extends its guarantee not only to privacy in its dimension constitutionally protected by Article 18.1 of the Spanish Constitution (CE), but also to what this Court has sometimes defined in broader terms as the sphere of personal goods that belong to the realm of private life, inextricably linked to the respect for personal dignity (STC 170/1987, of October 30, FJ 4), such as the right to honor, expressly cited in Article 18.4 CE, and likewise, in the broad expression of Article 18.4 CE itself, to the full exercise of personal rights. The fundamental right to data protection broadens the constitutional guarantee to those data that are relevant to or have an impact on the exercise of any personal rights, whether or not they are constitutional rights and whether or not they relate to honor, ideology, personal and family privacy, or any other constitutionally protected good. Thus, the object of protection of the fundamental right to data protection is not limited only to the intimate data of the person, but to any type of personal data, whether intimate or not, whose knowledge or use by third parties may affect their rights, whether or not fundamental, because its object is not only individual privacy, which is protected by Article 18.1 CE, but personal data. Consequently, it also extends to those public personal data, which, by being public, accessible to anyone, do not escape the power of disposition of the affected individual because their right to data protection guarantees it. Therefore, the fact that the data is personal does not mean that only those relating to the private or intimate life of the person are protected, but that the protected data includes all those that identify or allow for the identification of the person, which may serve for the construction of their ideological, racial, sexual, economic profile or of any other nature, or that serve for any other utility that in certain circumstances constitutes a threat to the individual.

It is also worth mentioning the ruling 27/2020, of February 24, issued by the Constitutional Court in its appeal 1379/2017, in which it reasons as follows:

"when the right to one's own image collides with other goods or rights constitutionally protected, particularly the freedoms of expression and information (Article 20.1.a and d CE), the different conflicting interests must be weighed, and, taking into account the specific circumstances of each case, it must be decided which interest deserves greater protection" (SSTC 105/1990, of June 6; 72/2007, FJ 5 and 156/2001, FJ 6). (...) As can be easily deduced, this occurs not only in its confrontation with the rights to honor and privacy, but also with the fundamental right to one's own image, for example, in those cases where information disseminates photographs or video clips that can only be understood as mere instruments for satisfying others' curiosity and have been included not with an informative function, but with the purpose of satiating the expectation that, in those terms, a particular news item may raise" (the emphasis is ours).

Having stated the above, it should be recalled that the information disseminated in the publication subject to this sanctioning procedure, like the image, which is the subject of analysis in much of the jurisprudence in this area, contains personal data and, therefore, all safeguards must be applied."

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guarantees in such a way that the fundamental right to the protection of personal data of the affected individuals is ensured.

In the specific case examined, PUBLICACIONES Y EDICIONES BARACA 208 published a news article in the digital version of its newspaper (...) which includes (...) containing personal data of A.A.A. (identifying and health data), to which any person has therefore been able to gain access.

While it is true that A.A.A. (...), this does not imply the total loss of control over their personal data, in accordance with the jurisprudence previously outlined.

The personal data of ID number or address (...); as well as those relating to the (...) are unnecessary for the purpose of information that could be understood to be pursued.

Therefore, in accordance with the evidence available at this moment regarding the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement, attributable to PUBLICACIONES Y EDICIONES BARACA 208, for violation of Article 5.1.c) of the GDPR.

IV

Classification and qualification of the infringement of Article 5.1.c) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1.c) of the GDPR could constitute an infringement classified under Article 83.5, paragraph a) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

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a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Proposal for sanction for the infringement of Article 5.1.c) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the proposal for resolution of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to scale the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected individuals and the level of damage and harm they have suffered (paragraph a). In the case at hand, the publication (...) containing several personal data of A.A.A. in the digital version of the newspaper of PUBLICACIONES Y EDICIONES BARACA 208 (...) implies the possibility of immediate and widespread dissemination of the content, considering that any person can access it.
- The intentionality or negligence in the infringement (paragraph b). The dissemination of (...) with the personal data of A.A.A. was carried out directly by PUBLICACIONES Y EDICIONES BARACA 208, intentionally, in its digital newspaper, as evidenced by the fact that such publication was accompanied by certain evaluative considerations (...).
- The categories of personal data affected by the infringement (paragraph g). As we have indicated, (...) contains identifying data of A.A.A., such as the ID number, a data considered particularly sensitive in that, if the processing of this data is not accompanied by the necessary technical and organizational measures to ensure that the person identified with it is indeed its owner, a third party can impersonate the identity of a natural person with the risks that this entails for the privacy, honor, and property of the impersonated individual.

Furthermore, special categories of data have also been exposed, specifically, health data of (...).

The balance of the circumstances considered, with respect to the infringement committed by violating what is established in Article 5.1.c), allows for an initial administrative fine of €5,000 (five thousand euros).

VI

Processing of special categories of personal data

Article 9 of the GDPR provides as follows:

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"1. The processing of personal data revealing ethnic or racial origin, political opinions, religious or philosophical beliefs, or trade union affiliation, as well as the processing of genetic data, biometric data aimed at uniquely identifying a natural person, health data, or data related to the sexual life or sexual orientation of a natural person is prohibited.

2. Paragraph 1 shall not apply when one of the following circumstances occurs:

- a) the data subject has given explicit consent to the processing of such personal data for one or more specified purposes, except when Union law or the law of the Member States provides that the prohibition mentioned in paragraph 1 cannot be lifted by the data subject.
- b) the processing is necessary for compliance with obligations and the exercise of specific rights of the data controller or the data subject in the field of employment law and social security and protection, to the extent that it is authorized by Union law or the law of the Member States or a collective agreement under the law of the Member States that establishes adequate safeguards for the respect of

fundamental rights and the interests of the data subject;

c) the processing is necessary to protect vital interests of the data subject or another natural person, in the event that the data subject is not physically or legally capable of giving consent;

d) the processing is carried out, within the scope of its legitimate activities and with appropriate safeguards, by a foundation, association, or any other non-profit body whose purpose is political, philosophical, religious, or trade union, provided that the processing relates exclusively to current or former members of such bodies or to persons who have regular contact with them in relation to their purposes and provided that the personal data are not communicated outside of them without the consent of the data subjects;

e) the processing relates to personal data that the data subject has made manifestly public;

f) the processing is necessary for the establishment, exercise, or defense of legal claims or when courts are acting in their judicial capacity;

g) the processing is necessary for reasons of substantial public interest, based on Union law or the law of the Member States, which must be proportional to the objective pursued, respect the right to data protection in essence, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject;

h) the processing is necessary for purposes of preventive or occupational medicine, the assessment of the worker's capacity to work, medical diagnosis, the provision of health or social care or treatment, or the management of health and social care systems and services, based on Union law or the law of the Member States or under a contract with a health professional and without prejudice to the conditions and safeguards provided for in paragraph 3;

i) the processing is necessary for reasons of public interest in the area of public health, such as protection against serious cross-border threats to health, or to ensure high standards of quality and safety of health care and of medicines or medical products, based on Union law or the law of the Member States that establishes adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy;

j) the processing is necessary for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, based on Union law or the law of the Member States, which must be proportional to the objective pursued, respect the right to data protection in essence, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject.

3. The personal data referred to in paragraph 1 may be processed for the purposes mentioned in paragraph 2, letter h), when their processing is carried out by a professional subject to the obligation of professional secrecy, or under their responsibility, in accordance with Union law or the law of the Member States or with the standards established by the competent national authorities, or by any other person also subject to the obligation of secrecy in accordance with Union law or the law of the Member States or the standards established by the competent national authorities.

4. Member States may maintain or introduce additional conditions, including limitations, regarding the processing of genetic data, biometric data, or health data.”

In the present case, the publication subject to this sanctioning procedure includes (...) that contain health data of A.A.A., as it collects (...). Health data, by their nature, belong to special categories of data, regulated in Article 9 of the GDPR, which establishes a general prohibition on their processing. Therefore, their processing requires the occurrence of one of the circumstances set out in paragraph 2 of the aforementioned article that lifts the general prohibition on processing.

However, in this case, this Agency does not find any of the circumstances that lift the prohibition for processing such special categories of personal data.

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Therefore, in accordance with the evidence available at this stage of the initiation of the sanctioning procedure, and without prejudice to the outcome of the investigation, it is considered that the known

facts could constitute an infringement attributable to PUBLICACIONES Y EDICIONES BARACA 208, for violation of Article 9 of the GDPR.

VII

Typification and Qualification of the Infringement of Article 9 of the GDPR

If confirmed, the aforementioned infringement of Article 9 of the GDPR could imply the commission of the infringement typified in Article 83.5, paragraph a) of the GDPR, which under the heading “General Conditions for the Imposition of Administrative Fines” states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that:

“Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 72 “Infringements Considered Very Serious” of the LOPDGDD indicates:

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations:

e) The processing of personal data of the categories referred to in Article 9 of Regulation (EU) 2016/679, without any of the circumstances provided for in that provision and in Article 9 of this organic law being present. (...)”

VIII

Proposal for Sanction for the Infringement of Article 9 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the proposed resolution of the sanctioning procedure, and without prejudice to the outcome of the investigation, it is considered appropriate to scale the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm suffered (paragraph a). In the present case, the publication of (...) containing several personal data of A.A.A. in the digital version of the newspaper of PUBLICACIONES Y EDICIONES BARACA 208 (...) implies the possibility of immediate and widespread dissemination of the content, considering that any person can access it.

- The intentionality or negligence in the infringement (paragraph b). The dissemination of (...) with the personal data of A.A.A. was carried out directly by PUBLICACIONES Y EDICIONES BARACA 208, intentionally, in its digital newspaper, as evidenced by the fact that such publication was accompanied by certain evaluative considerations (...).

- The categories of personal data affected by the infringement (paragraph g). As indicated, (...) published contains identifying data of A.A.A., such as the ID number, a data considered particularly sensitive in that, if the processing of this data is not accompanied by the necessary technical and organizational measures to ensure that the person identifying with it is indeed its owner, a third party may impersonate the identity of a natural person with the risks that this entails for the privacy, honor, and property of the impersonated individual.

The balance of the circumstances considered, regarding the infringement committed by violating what is established in Article 9, allows for an initial administrative fine of 5,000€ (five thousand euros).

IX

Provisional Measures

Article 69 of the LOPDGDD provides as follows:

“1. During the preliminary investigation or the initiation of a procedure for the exercise of the sanctioning power, the Spanish Data Protection Agency may reasonably agree on the necessary and proportionate provisional measures to safeguard the fundamental right to data protection and, in

particular, those provided for in Article 66.1 of Regulation (EU) 2016/679, the precautionary blocking of data and the immediate obligation to comply with the requested right.

2. In cases where the Spanish Data Protection Agency considers that the continuation of the processing of personal data, its communication, or international transfer would cause serious harm to the right to the protection of personal data, it may order the controllers or processors of the processing to...

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blocking of the data and the cessation of its processing and, in the event of non-compliance with these mandates, proceed to its immobilization.” (...)

For its part, Article 56 of the LPACAP states the following regarding provisional measures:

“1. Once the procedure has been initiated, the competent administrative body to resolve may adopt, ex officio or at the request of a party and in a reasoned manner, the provisional measures it deems appropriate to ensure the effectiveness of the resolution that may be issued, if there are sufficient elements of judgment for this, in accordance with the principles of proportionality, effectiveness, and lesser burden. (...)

3. In accordance with the provisions of the two preceding paragraphs, the following provisional measures may be agreed upon, under the terms provided in Law 1/2000, of 7/01, on Civil Procedure:

- a) Temporary suspension of activities.
- b) Provision of guarantees.
- c) Withdrawal or intervention of productive assets or temporary suspension of services for reasons of health, hygiene, or safety, the temporary closure of the establishment for these or other causes provided in the applicable regulatory legislation.
- d) Preventive seizure of assets, income, and fungible items computable in cash by application of certain prices.
- e) The deposit, retention, or immobilization of movable property.
- f) The intervention and deposit of income obtained through an activity considered illegal and whose prohibition or cessation is sought.
- g) Consignation or establishment of a deposit of the amounts claimed.
- h) The retention of income owed by Public Administrations.
- i) Any other measures that, for the protection of the rights of the interested parties, are expressly provided by law, or that are deemed necessary to ensure the effectiveness of the resolution.

4. Provisional measures that may cause harm of difficult or impossible repair to the interested parties or that involve a violation of rights protected by law may not be adopted.

5. Provisional measures may be lifted or modified during the processing of the procedure, ex officio or at the request of a party, by virtue of unforeseen circumstances or those that could not be taken into account at the time of their adoption. In any case, they will cease when the administrative resolution that concludes the corresponding procedure takes effect.”

In light of the circumstances analyzed in this initiation agreement of the sanctioning procedure, it is understood that PUBLICACIONES Y EDICIONES BARACA 208 may be processing excessive personal data, especially considering the nature of the data being processed. Therefore, it is considered that the continuation of the processing could cause very serious and irreparable harm to the rights of the potential affected parties.

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Furthermore, the publication of the news subject to this sanctioning procedure in the digital version of

the newspaper of PUBLICACIONES Y EDICIONES BARACA 208 implies immediate dissemination and a greater reach, since any person can access its content.

Consequently, in order to guarantee the rights and freedoms of the affected parties, it is necessary to order PUBLICACIONES Y EDICIONES BARACA 208, S.L. with CIF B85372167 through this Agreement to Initiate the sanctioning file, in accordance with the provisions of Article 69 of the LOPDGDD, to adopt the provisional measure consisting of suspending the processing of personal data subject to this sanctioning procedure by removing the published content in the digital version of the newspaper of PUBLICACIONES Y EDICIONES BARACA 208, S.L. (...)

It must be carried out in such a way that it prevents access to the personal data, its dissemination, and the disposal of the original by third parties, avoiding the re-uploading or reloading of exact copies or replicas by internet users of the published content. In any case, its conservation will be guaranteed, for the purposes of custody of the evidence that may be necessary in the course of any investigation or process that may be instructed, including the appeals that may be filed against the resolution issued in these proceedings.

This provisional measure must be adopted within a maximum period of seven calendar days from the day on which the notification of this initiation agreement of the sanctioning procedure takes place (informing the Spanish Agency for Data Protection about the execution of this measure within that same period) and will be maintained until the final resolution of the sanctioning procedure, in which it must be confirmed, modified, or lifted, without prejudice to the provisions of Article 56.5 of the LPACAP.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against PUBLICACIONES Y EDICIONES BARACA 208, S.L., with NIF B85372167, for:

- The alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the GDPR.
- The alleged infringement of Article 9 of the GDPR, classified in Article 83.5.a) of the GDPR.

SECOND: TO APPOINT B.B.B. as instructor and C.C.C. as secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

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THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of the LPACAP, the sanction that may correspond would be:

- For the alleged infringement of Article 5.1 c) of the GDPR, classified in Article 83.5 a) of said regulation, an administrative fine of 5,000€ (five thousand euros).
- For the supposed infringement of Article 9 of the GDPR, classified in Article 83.5.a) of said regulation, an administrative fine of 5,000€ (five thousand euros).

FIFTH: TO ORDER as a provisional measure, in accordance with the provisions of Article 69 of the LOPDGDD and Article 56 of the LPACAP, the temporary suspension of the processing of personal data subject to this sanctioning procedure through the removal of the content published in the digital version of the newspaper of PUBLICACIONES Y EDICIONES BARACA 208, S.L., with NIF B85372167. The provisional measure must be carried out within a maximum period of seven calendar days from the day on which the notification of this agreement to initiate the sanctioning procedure takes place (informing the Spanish Agency for Data Protection about the execution of said measure within that same period) and will be maintained until the final resolution of the sanctioning procedure, at which point it must be confirmed, modified, or lifted, without prejudice to the provisions of Article 56.5 of the LPACAP.

SIXTH: TO NOTIFY this agreement to PUBLICACIONES Y EDICIONES BARACA 208, S.L., with NIF B85372167, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 8,000€ (eight thousand euros), resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 8,000€ (eight thousand euros), and its payment will imply the

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termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for voluntary payment of the sanction is cumulative to that which corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €6,000 (six thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

For these purposes, in the event of opting for either of them, a communication of the express withdrawal or renunciation of any action or appeal in the administrative route against the sanction must be sent to the General Sub-Directorate of Data Inspection, indicating which of the two reductions is being accepted or if both are being accepted.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above (€8,000 or €6,000), you must make the payment by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

Additionally, you must send the proof of payment to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

The sanctioning procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be carried out exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí
Director of the Spanish Agency for Data Protection

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SECOND: On July 18, 2024, the respondent proceeded to pay the sanction in the amount of €6,000.00, making use of the two reductions provided for in the previously transcribed Initiation Agreement.

THIRD: On July 22, 2024, it communicated to this Agency the withdrawal of the content published in the digital version of the newspaper of PUBLICACIONES Y EDICIONES BARACA 208, S.L. (...). It provides a screenshot, dated July 19, 2024, at 8:52 hours, in which it records the withdrawal of the publication in question.

FOURTH: On November 27, 2024, this Agency sent a letter to the respondent indicating the following: "The conditions under which PUBLICACIONES Y EDICIONES BARACA 208, S.L. has accepted the reduction for acknowledgment of responsibility cannot be considered valid, as it does not infer from the allegations made regarding the initiation agreement of the sanctioning procedure PS/00309/2024 that it acknowledges its responsibility, but rather the opposite.

Therefore, PUBLICACIONES Y EDICIONES BARACA 208, S.L. is granted a period of 10 days, counted from the day following the notification of this communication, to provide, if that is its will, the express acknowledgment of responsibility in the terms established in Article 85 of the LPACAP. If after this period, PUBLICACIONES Y EDICIONES BARACA 208, S.L. does not present any statement in this regard, the procedure must continue, without the two requested reductions being applicable."

On December 6, 2024, PUBLICACIONES Y EDICIONES BARACA 208, S.L. responded to the letter stating that "It accepts and expressly acknowledges responsibility for the infringement attributed in this sanctioning procedure, renouncing any action or appeal in the administrative route against the resolution of this sanctioning file."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and

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guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures"

provides as follows:

- “1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the imposition of the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned on the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement allowed for the voluntary payment of the proposed sanction and acknowledgment of responsibility, which would entail a reduction of 40% of its amount. With the application of this reduction, the sanction would be set at 6,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, the respondent has proceeded with the voluntary payment and acknowledgment of responsibility, availing themselves of both reductions and expressly waiving any action or administrative appeal.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the high court in this matter, the exercise of voluntary payment by the presumed responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their form of initiation. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all matters raised by the interested parties and those arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts yields a total of 10,000.00 euros.

After the respondent has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the aforementioned total is applied, resulting in a final amount of 6,000.00 euros.

SECOND: TO DECLARE the termination of procedure EXP202409705, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO CONFIRM, elevating it to definitive, the provisional measure imposed on PUBLICACIONES Y EDICIONES BARACA 208, S.L consisting of the suspension of the processing of personal data subject to this sanctioning procedure through the withdrawal of the content published in the digital version of the newspaper of PUBLICACIONES Y EDICIONES BARACA 208, S.L. (...).

FOURTH: TO NOTIFY this resolution to PUBLICACIONES Y EDICIONES BARACA 208, S.L.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility on the withdrawal or renunciation of any action or administrative appeal, the present authority accepts the express renunciation manifested by the respondent, thus precluding the filing of a voluntary appeal for reconsideration against this resolution, all without prejudice to the possibility of resorting to the contentious-administrative jurisdiction.

Consequently, taking into account the provisions of Article 90 of the LPACAP, since there is no administrative appeal available due to the express renunciation, this resolution will be fully enforceable from the notification thereof.

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Notwithstanding, in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be suspended provisionally if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

1259-101224

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the positions of President and Deputy

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